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Jewish Caucus Stands Up

June 17, 2026 | Jewish Journal of Greater Los Angeles, The (CA)
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OpenURL Link

As regular readers of The Journal know by now, I try to use this column to offer analysis on matters of import to the Jewish community. I also do my best to avoid advocating for or against specific politicians or parties unless it is richly deserved. Like right now.

One of the best-kept secrets in California politics is the effectiveness and growing influence of the Legislative Jewish Caucus. While the caucus was established over a decade ago, it has developed into a formidable political force in state politics under the leadership of its current chair, Assemblymember Jesse Gabriel (D-Encino) and his predecessor Senator Ben Allen (D-El Segundo).

Allen, who deserves to be California's next Insurance Commissioner, and Gabriel, who should ascend to statewide office four years from now, have led the group forward over the last several years through a series of legislative victories regarding hate crimes, anti-BDS restrictions, Holocaust education funding, security grants and several other fights in the multi-front battle against antisemitism. Their most challenging and most significant victory may have been their stalwart work to shape ethnic studies requirements in California public schools, working with Governor Newsom and numerous other stakeholders to remove virulent antizionist and antisemitic content from the original curriculum and replace it with more appropriate and educationally useful material.

The Jewish Caucus took on another important challenge last week when Assemblymembers Gail Pellerin (D-San Jose) and Marc Berman (D-Palo Alto) introduced legislation that would force Secretary of State Shirley Weber to do her job. Some of you may remember the controversy that erupted earlier this spring when Weber's office allowed a candidate for statewide office to include vile and hateful antisemitic language in his ballot statement. (The equal opportunity bigot included similarly racist and anti-LGBTQ dross as well.)

Weber's staff were unwilling to remove the offensive material and defended themselves by asserting that she is bound by laws that only allow the state to reject candidate statements if they directly reference an opponent. But that is demonstrably untrue, as the Secretary's own website declares that statements "shall be limited to a recitation of the candidate's own personal background and qualifications." Conspiracy theories regarding the 9/11 attacks, the Gaza War or the deployment of a nuclear weapon were clearly unrelated to the candidate's background and qualifications, but they remained and were distributed to 23 million potential voters at taxpayer expense.

The same guidelines said the Secretary of State could disqualify statements if her office raised objections and candidates did not make appropriate changes. There is no record of the Secretary's office raising any such objections. They were apparently satisfied that a disclaimer stating that Weber and her staff did not share these repugnant sentiments was sufficient.

Weber and her staff could have acted honorably and refused to include the offensive language in this spring's voter guide. They could have demonstrated a modicum of courage by publicly denouncing the antisemitic material in a news conference, press release or social media posting. They instead hid behind ambiguous language to shield themselves from backlash against bigots who occupy the fringes of both political parties.

To prevent such an appalling situation from repeating itself, Pellerin and Berman authored legislation that would clarify the situation for others who would use the existing lack of clarity as an excuse to avoid courageous action. The bill, which is technically unnecessary but still invaluable, would establish enforceable standards ensuring that official state publications are never again used to promote hate speech against any community. Specifically, it would "… limit candidate statements to information about a candidate's own education, professional experience, public service, community involvement and qualifications for office. It bars attacks on individuals or groups, links to

external content, false or misleading claims and hateful or discriminatory content. It authorizes the Secretary of State and county elections officials to reject noncompliant content, and allows any registered voter to seek judicial enforcement."

If passed, the superfluous but important legislation will force Weber and her successors to do the right thing in future elections. This is why there is a Jewish Caucus in Sacramento. This is why we're lucky to have them.

Dan Schnur is the U.S. Politics Editor for the Jewish Journal. He teaches courses in politics, communications, and leadership at UC Berkeley, USC and Pepperdine. He hosts the monthly webinar "The Dan Schnur Political Report" for the Los Angeles World Affairs Council & Town Hall. Follow Dan's work at www.danschnurpolitics.com

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- **Citation (apa Style)**
  Schnur, D. (2026, June 17). Jewish Caucus Stands Up.*Jewish Journal of Greater Los Angeles, The (CA)* Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/1A8CD12E76F1BC20.